

HCS HBs 1664, 1610, 1645 & 2182 -- STATUTES OF LIMITATION
SPONSOR: Seitz

COMMITTEE ACTION: Voted "Do Pass with HCS" by the Standing Committee on Commerce by a vote of 6 to 1. Voted "Do Pass" by the Standing Committee on Rules-Legislative by a vote of 9 to 1.

The following is a summary of the House Committee Substitute for HBs 1664, 1610, 1645 & 2182.

This bill adds to the three year statute of limitation, actions that accrues on or after August 28, 2026, for any injury to the person or rights of another, not arising on contract and not otherwise provided for by law, including actions for personal injury or bodily injury and an action that accrues on or after August 28, 2026, against an insurer relating to uninsured motorist coverage or under-insured motorist coverage, including any action to enforce such coverage.

The bill adds the offense of sexual exploitation of a minor to the current definition of "childhood sexual abuse" in the context of civil actions to recover damages from injury or illness caused by childhood sexual abuse.

Currently, any action to recover damages from injury or illness caused by sexual abuse must be commenced within 10 years of the plaintiff turning 21 years of age or within three years of the date the plaintiff discovers the injury or illness was caused by childhood sexual abuse, whichever later occurs. This bill changes the time frame to 20 years and provides certain characteristics of the individual who commits the offense, as specified in the bill.

The bill requires any action to recover damages from such abuse in an action brought against a person other than what is referenced in Section 537.046, RSMo, be commenced within five years of the plaintiff turning 21 years of age.

This bill is similar to HB 114 (2025) and HB 1617 (2024).

The following is a summary of the public testimony from the committee hearing. The testimony was based on the introduced version of the bill.

PROPONENTS: Supporters say that this bill gives victims more time to come forward to hold the individual who sexually abused them accountable.

Testifying in person for the bill were Representative Seitz; Missouri Insurance Coalition; Missouri Chamber of Commerce and Industry; Missouri Civil Justice Reform Coalition, Inc.; American Tort Association; Missouri Network Against Child Abuse; National Association of Social Workers - MO Chapter; Elizabeth Phillips; Arnie Dienoff.

OPPONENTS: There was no opposition voiced to the committee.

Written testimony has been submitted for this bill. The full written testimony and witnesses testifying online can be found under Testimony on the bill page on the House website.